

the motion on procedural grounds as plaintiff failed to attach a proposed second amended complaint with her motion, in violation of California Rule of Court, Rule 3.1324(a)(1). In response to defendant's opposition, plaintiff submitted her proposed second amended complaint with her reply. The court granted a continuance to permit defendant leave to respond further following review of the proposed second amended complaint. No further response was filed.

Plaintiff's motion to reclassify this action to an unlimited civil case is granted. (Code Civ. Proc., §§ 403.020, 403.040.) Plaintiff shall forthwith submit the required fees to reclassify to an unlimited civil case. (Code Civ. Proc., §§ 403.040 (c)(1), 403.060; Gov. Code, § 70619.) Failure to pay the required fees may result in the case proceeding as a limited civil case or, on notice, dismissal of the action. (Code Civ. Proc., §§ 403.040 (d)(3), 403.060 (b).)

"The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading ..." Code Civ. Proc. § 473 (a)(1). "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." Code Civ. Proc. § 576.

Plaintiff's motion for leave to amend the first amended complaint is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) Plaintiff shall file and serve the second amended complaint **on or before May 8, 2026**.

4. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Plaintiff's motion for contract revision and for attorneys' fees and costs is continued to be heard on **May 5, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

5. S-CV-0049847 Sorensen, Sven v. Asher, Raymond

Motion to Enforce Settlement under CCP 664.6

Plaintiffs move the court to enforce terms of the settlement agreement between the parties and for an award of attorneys' fees pursuant to the terms of the agreement. The court previously continued the hearing on this matter to permit plaintiffs the opportunity to respond to additional information set forth in a supplemental response filed by defendant. The court has considered all filings by the parties in relation to the current motion.

Code of Civil Procedure section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." A court ruling on a motion under Code of Civil Procedure section 664.6 may consider the parties'

declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905, 911; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.)

On or about February 26 and 27, 2025, plaintiffs Sven Sorensen and Susan Sorensen and defendant Raymond Asher executed a settlement agreement resolving all claims in this action. (See Pl. Errata. Exh. 1.) On July 11, 2025, based on the parties' stipulation, the court dismissed the action with prejudice and retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the terms of the settlement agreement. Plaintiffs assert in this motion that defendant has not complied with numerous provisions of the settlement agreement relating to an easement that was the subject of this litigation ("the Easement").

Paragraphs 5 and 6

Paragraph 5 of the settlement agreement requires defendant to remove an existing retaining wall located within the Easement and to relocate the retaining wall closer to the eastern boundary of his property. Paragraph 5 includes numerous provisions regarding the new retaining wall, including that it be designed and engineered by a licensed structural engineer, geotechnical engineer, or other appropriate engineer; be constructed by an appropriately experienced licensed contractor; be properly permitted; include appropriate drainage systems; that defendant provide all engineering design documents and necessary permits to plaintiff upon receipt; that it pass required inspections; that construction be commenced within 120 days of the agreement or as otherwise required by the permitting process; and that it incorporate masonry bricks used for the current retaining wall, and additional masonry bricks of similar type, color and quality if necessary.

Paragraph 6 of the settlement agreement provides an alternative if the 20-foot roadway cannot be achieved solely by relocating the retaining wall, which would require defendant to remove or shift an existing fence.

Plaintiffs present evidence that although the original retaining wall was removed, it has not been relocated and reconstructed. Defendant admits the same but claims that "the engineer" advised that a retaining wall in that location was unnecessary. Defendant also proffers the opinion of Randy Pruss, a licensed contractor, that the retaining wall would not be safe "due to the slope, drainage conditions, and surrounding terrain". (See Declaration of Randy Pruss.) Defendant asserts that both Mr. Pruss and the unidentified engineer agreed that the retaining wall would not be safe, and that a properly engineered 2:1 slope would be the safest and most effective solution for stability and drainage.

In response, plaintiffs present the declaration of Chris Oliveira, a licensed engineer who was retained by defendant to design the replacement retaining wall. Mr. Oliveira denies that the retaining wall as designed would present any safety concerns and denies ever

making a determination that the retaining wall would not perform safely or posed a safety concern.

Despite Mr. Pruss's stated experience, it has not been satisfactorily demonstrated to the court that the replacement retaining wall as planned would be unsafe. Further, the settlement agreement terms expressly call for relocation and reconstruction of the retaining wall except in those circumstances where relocation of the retaining wall would not achieve the required 20-foot roadway. Even if this was demonstrated, the settlement agreement does not give defendant discretion to modify the terms as it pertains to the new retaining wall, nor did defendant seek to modify the settlement terms on the grounds that performance would be impossible or impractical. The court finds defendant has failed to perform under paragraphs 5 and/or 6 of the settlement agreement.

Paragraph 9

Paragraph 9 of the settlement agreement requires defendant to ensure the roadway within the Easement is properly graded and surfaced with gravel of the same or better quality as the gravel on the existing roadway; to ensure the roadway is graded to provide a smooth, level, and properly sloped surface to ensure proper drainage and usability; and to ensure the grading complies with applicable engineering standards and that the roadway remains stable and functional over time.

At the time their motion was filed, defendant had purportedly indicated to plaintiff's counsel that he would not complete these terms. Since the filing of the motion, however, defendant apparently did move forward with the necessary work to widen the roadway and defendant asserts all requirements of Paragraph 9 were complied with. As to the requirements of Paragraph 9, plaintiffs fail to establish a breach of the settlement terms at this time.

Paragraphs 15 and 16

Paragraph 15 of the settlement agreement requires defendant to address drainage along the northern end of his property and the southern end of plaintiffs' property; to hire appropriate experts, including but not limited to a licensed civil engineer or drainage specialist, to design and implement a drainage system at the northern end of his property which effectively manages water runoff to prevent flooding, erosion, or other adverse impacts to the southern end of plaintiff's property; and that the drainage work comply with applicable laws, regulations, and best practices for property and water management.

Paragraph 16 of the settlement agreement requires defendant to ensure that dirt and grading at the northern end of his property are repaired and leveled to allow safe and reasonable access to the southern end of plaintiff's property within the 20 foot roadway, with all work being performed by a licensed contractor.

Plaintiffs claim defendant has failed to comply with the requirements of Paragraph 15. In response, defendant asserts that Mr. Pruss, in conjunction with the engineer, advised him

that the 2:1 graded slope would be the most appropriate method by which to address drainage concerns. There is no indication that plaintiff engaged with a civil engineer.

It has not been satisfactorily demonstrated to the court that defendant has complied with Paragraph 15. Mr. Pruss's statements regarding the 2:1 graded slope do not appear to address the specifics of this provision, which require design and implementation of a drainage system in a specific area between the parties' properties. Defendant presents insufficient information to support the conclusion that the 2:1 graded slope would constitute a "drainage system" which effectively manages water runoff. The court finds defendant has failed to perform under paragraph 15 of the settlement agreement. However, plaintiffs offer no evidence that defendant failed to perform under paragraph 16 of the settlement agreement regarding the requirement that he ensure the dirt and grading at the northern end of his property are repaired and leveled to allow safe and reasonable access to the southern end of plaintiff's property.

Paragraphs 4, 13, and 20

Paragraph 4 of the settlement agreement requires defendant to engage a licensed surveyor to prepare an updated map reflecting the modified easement. The parties agreed to modifications including (1) the 20 foot portion of the easement be designated and reserved for ingress and egress only, with parking in or blocking of the ingress and egress prohibited; and (2) the existing 50 foot easement to remain for utility purposes only, including but not limited to water utilities.

Paragraph 13 of the settlement agreement requires defendant to hire a licensed surveyor to prepare all necessary documentation for the modified easement, including a detailed and accurate map reflecting the updated boundaries, dimensions, and configuration of the easement and any adjustments related to relocation of the retaining wall or fence, and a precise legal description of the modified easement suitable for recording purposes. Paragraph 13 further requires defendant to draft a new easement agreement to reflect modifications agreed to the parties.

Paragraph 20 requires defendant to take all reasonably necessary steps to ensure the new easement agreement is recorded and established as a superior interest to any existing or future recorded mortgage lien on defendant's property.

Plaintiffs present evidence defendant has failed to comply with the requirements of Paragraphs 4, 13, and 20. Defendant admits the same, asserting that because he restored and improved the existing easement, no new or modified easement was created, and the requirements of these paragraphs were not triggered.

Defendant's argument that the Easement has not been modified is unpersuasive given that the settlement agreement itself delineates modifications agreed to by the parties. The court finds plaintiff has failed to perform under paragraphs 4, 13, and 20 of the settlement agreement.

Attorneys' Fees

Paragraph 22 of the settlement agreement provides that the prevailing party in any legal action to enforce the agreement is entitled to recover their reasonable attorney's fees. The court finds plaintiffs are entitled to attorneys' fees as the prevailing party on this motion. Plaintiffs are awarded reasonable attorneys' fees in the amount of \$4,700.

Conclusion

Plaintiffs' motion is granted in part. Defendant is ordered to comply with Paragraphs 4, 5, 13, 15, and 20 of the settlement agreement within 60 days of service of notice of entry of order. The motion is otherwise denied. Plaintiffs are awarded attorneys' fees in the amount of \$4,700.

6. S-CV-0049529 Los Lagos Estates v. Le Garden Ha

The motion to release funds is dropped from calendar as moot as it was previously advanced and heard. (Law and Motion Minutes, Jan. 27, 2026 and Feb. 24, 2026.)

7. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

Plaintiffs move for finally approving the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Additionally, the moving papers indicate the 90-day deadline for class members to submit a claim will expire on April 27, 2026. The court will need updated information as to the total number of claims received after the expiration of the 90-day claim period.

The moving papers also indicate the settlement administrator has incurred \$42,553.66 in expenses and estimates the final overall expenses will be approximately \$84,897.21. However, this is significantly more than the amount the court preliminarily approved, which was \$58,575 or, if reminder notices were required, then \$64,100. The court intends to either (1) limit the settlement administration costs to those preliminarily approved or (2) take the difference in the amount claimed from the amount preliminarily approved from the attorneys' fees provided for in the parties' settlement, unless plaintiffs show cause why the court should change the amount of settlement administration costs. Plaintiffs may file and serve a supplemental brief on this issue, not to exceed 10 pages.

The motion for final approval is continued to **June 23, 2026 at 8:30 a.m. in Department 42**. Plaintiff shall file and serve notice of continued hearing and updated information